

		informal resolution of the matter. (ROA 48; Turner Decl., ¶¶ 2-5.) Plaintiff is ORDERED to file a joint stipulation regarding the filing of a FAC should the parties so stipulate no later than nine (9) court days before the hearing. Otherwise, Defendant is ORDERED to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will assume the issues have been resolved and take the demurrer off calendar. Moving Defendant to give notice.
13	Jin vs. PCH Auto LLC 30-2024-01437254-CU-BC-CJC	Motion for Summary Judgment/Adjudication The Motion for Summary Judgment/Adjudication by Defendant Mercedes-Benz Financial Services USA LLC as to the First Amended Complaint (FAC) of Plaintiffs Shengmin Jin and Skye Jin is GRANTED. Defendant's request for judicial notice is DENIED as unnecessary as to the operative complaint because the Court may consider the pleadings in this case. As to the Electronic Certificate of Title and Online Vehicle Reports, the request is GRANTED because the official DMV records including the registered and legal owners of the subject vehicle and lien and title information "are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy." (Evid. Code, § 452(h).) Here, Defendant has shown the documents reflect official DMV records and Plaintiffs do not demonstrate a genuine dispute as to the existence or accuracy of the DMV records. Defendant's objections to the declaration of Plaintiff Shengmin Jin (ROA 186) are OVERRULED. Request for Continuance Plaintiffs' request a continuance of the hearing to conduct further discovery under Code of Civil Procedure section 437c, subdivision (h) is DENIED. Plaintiffs' counsel does not submit a declaration explaining why they failed to conduct the necessary discovery since filing the complaint in November 2024, how and when they intend to conduct such discovery, or what they anticipate the discovery may reveal. Rather,

	Plaintiffs rely on the declaration of Plaintiff Shengmin Jin, who states he is informed discovery has not been conducted regarding (1) who made payments on the vehicle loan between December 2023 and June 2024, (2) payment records or communications between the Defendants, or (3) the deposition of Malek Hanna to determine how the dealership obtained the vehicle or whether the true owner authorized the sale. (¶¶ 27, 32, 33.) Plaintiffs have not shown they have initiated such discovery to date or how discovery would assist their legal claims. (See <i>Braganza v. Albertson’s LLC</i> (2021) 67 Cal.App.5th 144, 152; <i>Menges v. Department of Transportation</i> (2020) 59 Cal.App.5th 13, 25.) Summary of Undisputed Facts Defendant Malex Housing, LLC (Malex) purchased the subject vehicle from Mercedes-Benz of West Covina on 6/21/22 pursuant to a Retail Installment Sale Contract (“RISC”). (Undisputed Material Fact [UMF] 1.) The RISC provided the vehicle could not be sold or transferred without Defendant’s permission. (UMF 4.) Moving Defendant was assigned the contract by the original dealer. (UMF 6.) Unknown to Defendant, at some point the subject vehicle came into possession of Defendant PCH Autos LLC, which Plaintiffs paid to purchase the vehicle. (UMFs 7-8.) The Dealership never provided Plaintiffs with title to the vehicle. (UMF 15.) Defendant asserts it never knew about or authorized the second sale from the Defendant Dealership to Plaintiffs. (UMFs 9-14.) Plaintiffs dispute these facts based on Plaintiff Jin’s declaration at paragraphs 27-33, which states Plaintiffs believe someone else was making payments to Defendant on the vehicle between December 2023 and June 2024 because Defendant’s loan did not go into default until six months after Plaintiffs paid the Defendant Dealership for the vehicle. Plaintiff believes Defendant Dealership may have been making loan payments to Defendant after Plaintiffs purchased the vehicle, but have not conducted discovery to support this assertion. (¶¶ 31, 32.) Merits Defendant claims it maintains an undisturbed perfected lienholder interest in the vehicle, it is the vehicle’s legal owner, and it never knew about or authorized the Dealership’s sale of the vehicle. Defendant contends that
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		under California's Full Title Doctrine (Veh. Code, §§ 6300-6303), its security interest survived the purported sale from the Dealership to Plaintiffs. Moving Defendant contends that if anyone is liable, it is the Dealership, which is responsible for ensuring title transfer under Vehicle Code section 5753. Vehicle Code section 6301 states in part, "When the secured party, his or her successor, or his or her assignee, has deposited, either physically or by electronic transmission pursuant to Section 1801.1, with the department a properly endorsed certificate of ownership showing the secured party as legal owner or an application in usual form for an original registration, together with an application for registration of the secured party as legal owner, the deposit constitutes perfection of the security interest and the rights of all persons in the vehicle shall be subject to the provisions of the Uniform Commercial Code...." "The general rule is that the seller of property can transfer to the buyer no better title than he has himself, and if at the time of the transfer he has no title, the purchaser, although buying in good faith and for full value obtains no title." (<i>Siebenhauer v. Bank of Cal. Nat. Ass'n</i> (1930) 211 Cal. 239, 241.) "The full title doctrine operates to defeat the claims of holders of an unlisted security interest as against the claims of good faith purchasers" because, "it should normally be impossible for a seller to present a buyer with a certificate of ownership which shows no security interest at a time when the DMV records show one." (<i>Suburban Motors, Inc. v. State Farm Mut. Auto. Ins. Co.</i> (1990) 218 Cal.App.3d 1354, 1362 [cleaned up].) "Because this 'full title' system requires all security interests to be listed on the statutory certificate of ownership (see Veh. Code, §§ 370, 4451, 4453), a purchaser may rely on the certificate and is not expected to check a centralized set of records to determine whether a security interest has been recorded." (<i>Ibid.</i>) "Vehicle Code section 6300 provides the exclusive method for perfecting a security interest in a vehicle not constituting inventory...." (<i>Quartz of Southern California, Inc. v. Mullen Bros., Inc.</i> (2007) 151 Cal.App.4th 901, 908.) "The provisions of the Uniform Commercial Code do not come into play to determine the rights of competing parties until the security interest is perfected under the Vehicle Code." (<i>Ibid.</i>)
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		In opposition, Plaintiffs do not deny Defendant remains the lienholder of record and Defendant Malex never paid off the loan under the original RISC. (UMFs 18, 21.) The title was never transferred to Plaintiffs' name with the DMV. (UMF 22.) Rather, Plaintiffs argue they purchased the vehicle in good faith without any knowledge of Defendant Malex's ownership or moving Defendant's security interest in the vehicle. Plaintiffs did not know the Dealership lacked legal authority to sell the vehicle. Plaintiffs contend Defendant has not met its burden to demonstrate its perfected security interest because the Court cannot take judicial notice of the Electronic Certificate of Title and Online Vehicle Reports. The court disagrees but even so, Defendant presents the declaration of its Collections Group Leader who declares, "MBFS received by assignment from the Dealer the Contract, and pursuant to its terms, MBFS' lienholder and legal ownership interest in the Mercedes-Benz that was perfected with the California Department of Motor Vehicles ("DMV") on July 6, 2022." (¶¶10-15.) Defendant has met its burden of demonstrating it holds title to the vehicle as reflected in the title certificate. Plaintiffs assert there is a dispute as to whether (1) Defendant consented to or ratified the sale by accepting payments from the Dealership or another third party for six months after Plaintiffs' purchase, (2) Malex authorized the Dealership to sell the vehicle, (3) Plaintiffs are bona fide purchasers, and (4) Defendant had actual or constructive notice of the sale. (Opp., p. 7.) The only legal authority cited by Plaintiffs in support of their arguments is Civil Code section 2026, which provides that a "factor" is an agent employed by another to sell property and who is authorized to conduct a sale. (Civ. Code, §§ 2026-2030.) Plaintiffs assert the Dealership <i>may have</i> been acting as Malex's agent to conduct a binding sale, with constructive knowledge of moving Defendant. However, Plaintiffs do not cite evidence in support of this theory other than their assertion Defendant did not place the loan in default until six months after Plaintiffs' purported purchase of the vehicle. Defendant has shown it holds a valid security interest in the vehicle listed on the title certificate. Plaintiffs do not dispute this but assert, without supporting evidence, Defendant Malex <i>may have</i> consented to the sale of the vehicle despite the terms of Malex's RISC with moving
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		Defendant which prohibited Malex's sale of the vehicle without Defendant's consent. Plaintiffs further speculate Defendant <i>may have</i> ratified the sale by continuing to accept payment, possibly from the Dealership. However, even if Plaintiffs presented evidence showing Malex authorized the Dealership to sell the vehicle and Defendant continued to accept payments from the Dealership, they fail to cite legal authority showing this would invalidate Defendant's title to the vehicle or allow the Dealership to effectively transfer title to Plaintiffs. Moreover, they fail to rebut Defendant's undisputed evidence it had no knowledge of the purported sale by the Dealership. Under the Full Title Doctrine, Plaintiffs have not shown they obtained title to the vehicle or extinguished Defendant's right to the vehicle which was reflected on the certificate of title. Sale by the Dealership was invalid. Defendant is ORDERED to submit a judgment for the court's signature within 5 days. Clerk to give notice.
14	Marek vs. E & S Ring Management Corp. 30-2024-01446531-CU-PO-CJC	Motion for Summary Judgment Defendants E&S Ring Management Corp. and ZMV Partnership d/b/a Mediterranean Village Costa Mesa's motion for summary judgment as to plaintiff Marzena Marek's Complaint is DENIED. Defendants' Evidentiary Objections to the Declaration of Eris Barillas is SUSTAINED as to Objection No. 5 and OVERRULED as to the remaining. Plaintiff's Request for Judicial Notice is GRANTED. There is a triable issue of material fact on the negligence and premises liability causes of action on whether the trivial defect doctrine applies. (See <i>Cadam v. Somerset Gardens Townhouse HOA</i> (2011) 200 Cal.App.4th 383, 388-389.) Plaintiff has submitted an expert declaration of Eris Barillas, CXLT, CPSI, who inspected the subject stairway and found the stairway violated section 3305 of the 1967 Uniform Building Code and ASTM F1637-21, section 7.1.2 (Plaintiff's Additional Disputed Material Facts ("AMF") No. 14-17.) It is the expert's opinion, to a reasonable degree of professional certainty, that the code-violating variations created an unsafe condition that caused and/or contributed to Plaintiff's fall. (AMF No. 20.) Plaintiff also consistently testified at the moment of the fall the staircase "felt kind of different," she could not tell